

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Arthur Albano	Team: Squad #04	CCRB Case #: 201509385	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 10/23/2015 7:58 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 4/23/2017	Precinct: 84
Date/Time CV Reported Fri, 10/23/2015 11:27 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 11/03/2015 10:10 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Shaun Tanner	23860	933401	083 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Shaun Tanner	Discourtesy: PO Shaun Tanner spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Shaun Tanner	Force: PO Shaun Tanner used physical force against § 87(2)(b)	B . Unfounded
C . POM Shaun Tanner	Discourtesy: PO Shaun Tanner acted rudely toward § 87(2)(b)	C . Unfounded

Case Summary

On November 3, 2015, at approximately 7:58 a.m. § 87(2)(b) § 87(2)(b), parked his vehicle outside his place of work at § 87(2)(b), in Brooklyn. § 87(2)(b) § 87(2)(b) parked in a spot designated for NYPD dispatchers. Although there is no markings or signs that indicate that the spots are reserved for the NYPD, it is understood by those who work inside § 87(2)(b) that the spots are reserved.

As § 87(2)(b) was walking into § 87(2)(b), PO Shaun Tanner of the 83rd precinct told § 87(2)(b) to move his vehicle. § 87(2)(b) who was running late for work, told PO Tanner that he would sign in and then return to move his vehicle. PO Tanner told § 87(2)(b) again to move his vehicle or he would receive a summons. § 87(2)(b) told PO Tanner to write him a summons and then went into his building to sign in.

A few minutes later § 87(2)(b) returned to his vehicle and noticed PO Tanner in the process of writing him a summons. § 87(2)(b) who had been speaking to a colleague, § 87(2)(b) indicated that PO Tanner had been writing him a summons. According to § 87(2)(b) § 87(2)(b) PO Tanner allegedly turned to § 87(2)(b) and stated, “Yeah, I told you to move your fucking vehicle.” To which § 87(2)(b) responded, “Wow, you’re an asshole.” PO Tanner allegedly responded, “Oh really, I’m an asshole?” (within **Allegation A**).

§ 87(2)(b) then entered his vehicle while PO Tanner was still yelling at § 87(2)(b) § 87(2)(b) who ignored him. § 87(2)(b) alleged that PO Tanner was cursing while he was yelling, but he was ignoring PO Tanner, so he did not recall what specific statements were made (within **Allegation A**).

According to § 87(2)(b) PO Tanner had finished writing the summons, and was refusing to give § 87(2)(b) his copy. § 87(2)(b) told PO Tanner that since he wrote the summons, it was in the system, and he was going to receive a copy of it anyway, and then placed his car in reverse and started to back up to move out of the parking spot. PO Tanner stepped in front of § 87(2)(b)'s car, blocking him from leaving. § 87(2)(b) requested that PO Tanner place the summons on his windshield and PO Tanner refused and began saying something, to which § 87(2)(b) did not respond and rolled the window up while PO Tanner was speaking.

PO Tanner then walked over to § 87(2)(b)'s driver's side door, opened it and allegedly put his hand on § 87(2)(b)'s shoulder and pushed him back into his seat, and threw the summons into his vehicle (**Allegation B and C**). § 87(2)(b) reacted by standing up out of his seat. Since his vehicle was still in drive, when § 87(2)(b) stood up, it continued to roll forward and hit the vehicle in front of him. The hit did not cause any damage to either § 87(2)(b)'s vehicle, or other parked vehicle.

PO Tanner and § 87(2)(b) had a face to face verbal exchange by § 87(2)(b)'s driver's side door, during which PO Tanner allegedly said “Fuck” two times and “Shit” 5 times (within **Allegation A**).

After the verbal exchange, § 87(2)(b) left the scene, with a summons for parking in a No Standing Anytime zone.

§ 87(2)(b)

Video Footage

The investigation obtained two videos for this case from security cameras at § 87(2)(b) and § 87(2)(b). The videos contain no audio, but do capture the physical

interaction. The videos are embedded in the analysis section and relevant full videos can be located in Board Review 04 and 05.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation as an alternative resolution to this complaint.
- A notice of claim inquiry was sent to the New York City comptroller's office on December 9, 2015. A response to this inquiry will be included in the case file upon its receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Civilian and Officer CCRB Histories

- This is the first complaint filed by or involving § 87(2)(b)
- PO Tanner has been a member of the service for 12 years and there are three substantiated allegations against him. In CCRB case #200510651 an allegation for a question, frisk, and search were substantiated. The CCRB recommended charges for these allegations and he ultimately received Command Discipline A as a penalty.

Allegation A -Discourtesy: PO Shaun Tanner spoke discourteously to § 87(2)(b)

It is undisputed that PO Tanner had written a summons for § 87(2)(b) for parking in a NYPD designated spot. It is undisputed that PO Tanner and § 87(2)(b) had a brief interaction before § 87(2)(b) entered his vehicle and that there was a face to face exchange between § 87(2)(b) and PO Tanner after PO Tanner opened § 87(2)(b)'s driver's side door.

It is undisputed that § 87(2)(b) had used profanity in speaking to PO Tanner, § 87(2)(g)

§ 87(2)(b) (Board Review 01) alleged that as he approached his vehicle after previously disregarding PO Tanner's command to move it, he had indicated to § 87(2)(b) that PO Tanner was going to write him a summons. Hearing this PO Tanner allegedly stated, "Yeah, I told you to move your fucking vehicle." § 87(2)(b) admitted that he then called PO Tanner an "asshole" and PO Tanner responded, "Oh really? I'm an asshole?"

According to PO Tanner (Board Review 02), when § 87(2)(b) began approaching his vehicle again, § 87(2)(b) stated to § 87(2)(b) "This is the motherfucker giving me a ticket." But PO Tanner denied responding. Additionally, § 87(2)(b) then went to the driver's side door and stated, "I hope your dick's hard now that you're giving me a ticket." To which PO Tanner again did not have a response.

Later in the interaction, § 87(2)(b) and PO Tanner have a face to face exchange. § 87(2)(b) did not recall specific statements during this time, but stated that PO Tanner said "Fuck" twice and "Shit" about five times.

According to PO Tanner he did not use any profanity, even as § 87(2)(b) was saying, "You're lucky you got this uniform on or I'd fuck you up." PO Tanner's testimony regarding § 87(2)(b)'s statements are consistent with his memo book (Board Review 03).

§ 87(2)(b) was identified by both § 87(2)(b) and PO Tanner as witnessing this interaction and even interjecting to deescalate the situation. However, when contacted by phone, § 87(2)(b) stated that he did not recall the interaction, and did not recall either § 87(2)(b)

or PO Tanner cursing at one another. Similarly, § 87(2)(b) who was identified by § 87(2)(b) stated that she did not hear most of the interaction, and did not recall either § 87(2)(b) or PO Tanner use profanity towards one another.

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as *unsubstantiated*.

Allegation B –Force: PO Shaun Tanner used physical force against § 87(2)(b)

Allegation C –Discourtesy: PO Shaun Tanner acted discourteously towards § 87(2)(b)

It is undisputed that prior to being issued the summons, § 87(2)(b) attempted to drive away. PO Tanner then stood in front of § 87(2)(b)'s vehicle to prevent him from leaving and then went to the driver's side of the vehicle and opened § 87(2)(b)'s door.

According to § 87(2)(b) (Board Review 01), he told PO Tanner to put the summons on his windshield, and when PO Tanner began to respond, he rolled the window up on PO Tanner. At that point, PO Tanner opened his door, and allegedly pushed § 87(2)(b)'s shoulder back into his seat and threw the summons into his car.

According to PO Tanner (Board Review 02), as § 87(2)(b) was starting to move out of his spot, PO Tanner told § 87(2)(b) several times that he was not free to leave, as he had not yet issued § 87(2)(b) his summons. Since § 87(2)(b) still continued to pull out of the parking spot. PO Tanner opened § 87(2)(b)'s door and § 87(2)(b) immediately stood up and began yelling in PO Tanner's face. PO Tanner denied making any physical contact with § 87(2)(b). Further, PO Tanner stated that since § 87(2)(b) did not want to take the summons, he placed the summons on § 87(2)(b)'s seat.

§ 87(2)(b) stated that she was not present when PO Tanner opened § 87(2)(b)'s door, and § 87(2)(b) again stated that he did not recall any significant aspect of this interaction.

The video footage for this incident shows PO Tanner opening § 87(2)(b)'s door, and § 87(2)(b) immediately standing from his driver's seat so he is face-to-face with PO Tanner and an apparent verbal exchange. The video does not show PO Tanner reaching into § 87(2)(b)'s vehicle at any point, or him making physical contact with § 87(2)(b).



2015-12-11_17-40-42.mp4



2015-12-11_17-45-51.mp4

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations B and C** be closed as *unfounded*.

Squad:

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Attorney:	_____	_____	_____
	Title/Signature	Print	Date